

2:00 PM

LINE 9

25-CIV-05040

IMELDA NAVARRO VS. SYLVIE OCAFRAIN, ET AL.

IMELDA NAVARRO,
SYLVIE OCAFRAIN

MAREENA IBRAHIM

COSTCO WHOLESALE CORPORATION'S MOTION FOR SUMMARY JUDGMENT

TENTATIVE RULING:

Defendant Costco Wholesale Corporation's ("Defendant") Motion for Summary Judgment is GRANTED to the Complaint by Plaintiff Imelda Navarro ("Plaintiff").

Background

Plaintiff brings this action for general negligence and premises liability against Defendant after Plaintiff slipped and fell on a liquid substance at Defendant's store on July 19, 2023.

Defendant moves for summary judgment on the ground that it performed reasonable inspections of the premises and the burden shifts to Plaintiff to demonstrate that Defendant had notice of the water on the floor prior to the accident. Defendant also argues that Plaintiff cannot demonstrate Defendant had actual or constructive notice of the dangerous condition.

Plaintiff's Responsive Separate Statement fails to comply with California Rules of Court, rule 3.1350

Plaintiff's responsive separate statement does not include the evidence cited in Defendant's separate statement. As such, it fails to comply with the opposing separate statement format required under rule 3.1350(h). (See Cal. Rules of Court, rule 3.1350(h).) The court exercises its discretion to still consider Plaintiff's responsive separate statement, but it cautions Plaintiff to comply with this rule in the future.

Legal Standard

For purposes of a summary judgment or summary adjudication motion, the defendant has met the initial burden of showing that a cause of action has no merit if the party has shown that one or more elements cannot be established, or there is a complete defense to the cause of action. (Code Civ. Proc., § 437c, subd. (p)(2).) Once the defendant has met this burden, the burden shifts to the plaintiff to show that a triable issue of one or more material facts exists as to the cause of action or a defense thereto. (*Ibid.*)

For a defendant to meet the initial burden, it may present affirmative evidence negating as a matter of law an essential element of plaintiff's claim. (*Guz v. Bechtel Nat., Inc.* (2000) 24

Cal.4th 317, 334.) Another way for a defendant to meet its initial burden is to show that an essential element of plaintiff's claim cannot be established. (*Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 854.) To rely on an absence of evidence, the defendant must show that plaintiff does not possess and cannot reasonably obtain needed evidence. (*Ibid.*) Such evidence usually consists of admissions by plaintiff following sufficient discovery to show plaintiff has discovered nothing to support an essential element of the cause of action. (*Id.* at p. 855.) The defendant cannot just point out through argument that plaintiff does not possess and cannot reasonably obtain needed evidence, but must indeed present evidence. (*Ibid.*)

"Because summary judgment denies the adverse party a trial, it should be granted with caution." (*Assilzadeh v. California Fed. Bank* (2000) 82 Cal.App.4th 399, 409.) Summary judgment law turns on issue finding rather than issue determination. (*Diep v California Fair Plan Ass'n* (1993) 15 Cal.App.4th 1205, 1207.) The court does not decide the merits of the issues, but merely discovers whether there are issues to be tried and whether the parties possess evidence that demands the analysis of a trial. (*Melamed v City of Long Beach* (1993) 15 Cal.App.4th 70, 76.) Declarations of the moving party are strictly construed, those of the opposing party are liberally construed, and doubts as to whether a summary judgment should be granted must be resolved in favor of the opposing party. (*Aguilar, supra*, 25 Cal.4th at pp. 843-856.)

The elements of a negligence claim and a premises liability claim are the same: a legal duty of care, breach of that duty, and proximate cause resulting in injury. (*Kesner v. Superior Court* (2016) 1 Cal.5th 1132, 1158.) The duty arising from possession and control of property is adherence to the same standard of care that applies in negligence cases. (*Ibid.*) Although a store/business owner is not an insurer of the safety of its patrons, the owner owes a duty to exercise reasonable care in keeping the premises reasonably safe. (*Ortega v. Kmart Corp.* (2001) 26 Cal.4th 1200, 1205 (*Ortega*).) "The owner of premises is under a duty to exercise ordinary care in the management of such premises in order to avoid exposing persons to an unreasonable risk of harm. A failure to fulfill this duty is negligence." (*Brooks v. Eugene Burger Management Corp.* (1989) 215 Cal.App.3d 1611, 1619.)

An owner must have had actual or constructive notice of the dangerous condition before incurring liability. (*Ortega, supra*, 26 Cal.4th at pp. 1203-04.) At trial, the plaintiff bears the burden to prove that the owner had actual or constructive notice of the defect in sufficient time to correct it. (*Ibid.*)

Defendant meets its initial burden

Defendant proffers evidence to show that Plaintiff lacks any evidence that it had actual notice of the dangerous condition. (Defendant's Separate Statement of Undisputed Material Facts ("DSSUMF") nos. 3-4.) Defendant's affirmative evidence also supports that it did not have actual notice of the dangerous condition. (DSSUMF no. 8.)

Defendant also presents evidence to support that Plaintiff cannot establish constructive notice. Plaintiff slipped and fell at 7:19 p.m. in the Deli area of Defendant's warehouse when she stepped in water on the ground. (DSSUMF nos. 1-2.) Plaintiff does not know how long the water was

there prior to her fall. (DSSUMF no. 3.) Defendant's policy is to perform hourly floorwalks at the warehouse when open for business. (DSSUMF no. 5.) No potential hazards related to the Deli area were noted on the daily floor walk/safety inspection sheet from the date of the accident. (DSSUMF no. 8.) In addition to hourly floorwalks, Defendant's maintenance employees walk around with brooms to ensure the floors are clean. (DSSUMF no. 9.) At approximately 7:17 p.m., Defendant's employee, Gio Carranzo ("Carranzo") walked through the Deli area and past the location where Plaintiff slipped and fell. (DSSUMF no. 11.) Carranzo looked at the floor but he did not see any liquids or spills. (DSSUMF no. 12.) Defendant's evidence therefore supports that Plaintiff cannot establish constructive notice because it reasonably inspected the area approximately two minutes before Plaintiff slipped and fell.

Therefore, Defendant meets its initial burden by affirmatively introducing evidence showing Plaintiff cannot establish actual or constructive notice based upon its inspections. As the Court of Appeal stated in *Gonzalez v. Interstate Cleaning Corp.* (2024) 106 Cal.App.5th 1026, 1036: "We conclude the trial court properly ruled the undisputed evidence showed defendants actively inspected the floor, and the eight to nine-minute interval between the last inspection and plaintiff's fall was insufficient to demonstrate constructive knowledge." In this case, Defendant demonstrates that it did not have knowledge of any spill *two minutes* before Plaintiff fell, a shorter time than the eight-to-nine minute span found sufficient to show lack of constructive knowledge in *Gonzalez*.

Plaintiff fails to raise a triable issue of material fact

As to actual notice, Plaintiff argues that her discovery responses are not factually devoid because she identified the hazard as streaked water dripping from a source and produced affirmative evidence, her deposition testimony, verified interrogatory responses and scene photographs. (Plaintiff's Opposition, pp. 5:25-6:4.) Plaintiff fails to explain how this raises a triable issue of material fact as to Defendant's actual notice though. Furthermore, Plaintiff does not dispute that she does not know how long the water was there and that she has no personal knowledge of any Costco employee being aware of water on the ground prior to her accident. (Plaintiff's Response to DSSUMF nos. 3-4.) Plaintiff also claims that a hazard was noted in the adjacent food court. (Plaintiff's Response to DSSUMF no. 8.) However, the cited evidence (Crowell Decl., ¶ 12) states only that the potential hazards noted during the floorwalks on July 19, 2023 were related to the food court and back door alarm. Plaintiff does not provide evidence to show the Deli area is adjacent to the food court. Plaintiff also does not provide any evidence regarding how a potential hazard related to the food court provided actual notice of the alleged dangerous condition in the Deli area. While the Court considers the evidence in the light most favorable to Plaintiff, the only reasonable inference from this evidence for this motion is that Defendant did conduct inspections and noted potential hazards. As such, Plaintiff fails to raise a triable issue of material fact as to Defendant's actual notice of the dangerous condition.

Plaintiff also fails to raise a triable issue of material fact as to Defendant's constructive notice. As discussed above, Defendant's evidence shows that Carranzo walked by the area of the accident approximately *two minutes* before the accident and did not see any liquid or spills on the ground. Plaintiff argues a jury could reasonably infer from the volume, streak and tracked appearance of

water that it had been on the floor long enough that a reasonable inspection would have discovered it, but Plaintiff fails to provide evidence as to the volume, streak and tracked appearance. Plaintiff cites to her own deposition and response to interrogatories in which she states that she slipped in water that was dripping and that the dangerous condition consisted of long streaks of water. (DSSUMF no. 12.) This evidence does not provide any information regarding the volume, streak and tracked appearance though. Plaintiff's pictures of these apparent streaks of water are also unexplained. (Demirjian Decl., ¶ 5, and Exh. 3.) It is pure speculation without an evidentiary basis. Plaintiff's counsel states that they are true and correct copies of photographs of water on the floor at the scene of the incident, but there is no other information such as when they were taken, the volume, how long the streak was or any other information. More importantly, Plaintiff does not present any argument or evidence to raise a triable issue of material facts regarding Defendant's claim that it inspected the area two minutes prior to the accident and did not show any liquid and that such inspection was reasonable. Plaintiff therefore fails to raise a triable issue of material fact as to constructive notice.

Plaintiff further claims that notice is not required because the water appeared to have been dripping from the Deli department and thus a jury could infer the water originated from Defendant's instrumentality. (See *Hatfield v. Levy Bros.* (1941) 18 Cal.2d 798, 806.) In *Hatfield*, the defendant's employee waxed the floor the same day as the accident and admitted the floor was slippery. (*Id.*, at pp. 803, 804, 806.) The Supreme Court found that the evidence showed defendant's employee, who spread the wax, knew it was slippery and therefore dangerous, and thus his negligence brought about the condition. (*Id.*, at p. 806.) Where the dangerous condition of the property that causes the injury has been created by reason of the negligence of the owner of the property or his employee acting within the scope of employment, the owner of the property cannot be permitted to assert that he had no notice of knowledge of the dangerous condition because under such circumstances knowledge thereof is imputed to him. (*Ibid.*) Plaintiff offers no similar evidence to show that Defendant created the water spill here.

Evidentiary Objections

Plaintiff's evidentiary objections fail to comply with rule 3.1354. (See Cal. Rules of Court, rule 3.1354.) First, Plaintiff fails to comply with rule 3.1354(b)(3). Plaintiff objects to multiple paragraphs of declarations in a single objection without quoting or setting forth the objectionable material. (Plaintiff's Evidentiary Objections nos. 1, 3, 4.) Second, Plaintiff fails to comply with one of the two formats required for evidentiary objections. (*Id.*, rule 3.1354(b).) Third, Plaintiff did not submit a proposed order as required by rule 3.1354(c). Therefore, the court DECLINES to rule on these objections based on failure to comply with rule 3.1354. (See *Hodjat v. State Farm Mutual Automobile Ins. Co.* (2012) 211 Cal.App.4th 1, 8 [trial court did not abuse its discretion in refusing to rule on evidentiary objections where they failed to comply with rule 3.1354].)

Conclusion

Defendant's Motion for Summary Judgment is GRANTED.

If the tentative ruling is uncontested, it shall become the order of the Court. Thereafter, counsel for Defendant shall prepare a written order and proposed judgment consistent with the Court's ruling for the Court's signature, pursuant to California Rules of Court, Rule 3.1312, and provide written notice of the ruling to all parties who have appeared in the action, as required by law and the California Rules of Court. The Court alerts the parties to revised Local Rule 3.403(b)(iv) (amended effective January 1, 2024) regarding the wording of proposed orders.

2:00 PM

LINE 10

25-CLJ-08615

WELLS FARGO BANK, N.A. VS HAYLEY ROEMERS

WELLS FARGO BANK, N.A.
HAYLEY ROEMERS

DOUGLAS AGNE
PRO SE

MOTION TO DEEM REQUESTS FOR ADMISSIONS ADMITTED AND OF NONAPPEARANCE

TENTATIVE RULING:

The court GRANTS plaintiff Wells Fargo Bank N.A.'s unopposed motion to deem facts admitted against defendant Hayley Roemers.

On January 7, 2026, 2025, plaintiff served by mail defendant with requests for admissions. (Declaration of Douglas Agne, ¶ 1, Ex. A.) More than thirty-five days have passed and there have been no responses. (*Id.*, ¶ 2.) Accordingly, pursuant to Code of Civil Procedure section 2033.420, the court deems the requests admitted. Plaintiff shall attach the requests for admission to the proposed order.

Plaintiff did not request sanctions and thus none are awarded.

If the tentative ruling is uncontested, it shall become the order of the court. Thereafter, counsel for plaintiff shall prepare a written order consistent with the court's ruling for the court's signature, pursuant to California Rules of Court, rule 3.1312, and provide written notice of the ruling to all parties who have appeared in the action, as required by law and the California Rules of Court.
